

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DARNELL BOOMER,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of Incident

DETECTIVE DEAN CAMPBELL, Shield No. 1220 and
SERGEANT JOSEPH CRUZADO, Tax No. 934811,

Plaintiff designates Kings
County as the place of trial.

Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 1, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE DEAN CAMPBELL, Shield No. 1220,
SERGEANT JOSEPH CRUZADO, Tax No. 934811

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DARNELL BOOMER,

Plaintiff,

-against-

DETECTIVE DEAN CAMPBELL, Shield No. 1220 and
SERGEANT JOSEPH CRUZADO, Tax No. 934811,

Defendants.

----- X

INDEX NO.:

VERIFIED
COMPLAINT

JURY TRIAL DEMANDED

Plaintiff DARNELL BOOMER, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 5, 2014, at approximately 6:00 p.m., inside of 680 Quincy Street, 4th Floor, Brooklyn, New York, several police officers, including Detective Dean Campbell, Shield No. 1220, unlawfully entered Plaintiff's friend's apartment without a search warrant, illegally seized, falsely imprisoned, falsely arrested Plaintiff without cause or justification, by, among things. Thereafter, Plaintiff was maliciously prosecuted, and denied the right to a fair trial. Those officers that did not touch Plaintiff failed to intervene and protect him from being illegally seized, maliciously prosecuted, and denied the right to a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, and used excessive force against plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York.

PARTIES

2. Plaintiff DARNELL BOOMER is a resident of the state of New York.

3. DETECTIVE DEAN CAMPBELL, Shield No. 1220, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE DEAN CAMPBELL, Shield No. 1220, is and was at all times relevant herein, assigned a Narcotics precinct.

5. DETECTIVE DEAN CAMPBELL, Shield No. 1220 is being sued in his individual and official capacity.

6. SERGEANT JOSEPH CRUZADO, Tax No. 934811 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSEPH CRUZADO, Tax No. 934811, is and was at all times relevant herein, assigned a Narcotics precinct. .

8. SERGEANT JOSEPH CRUZADO, Tax No. 934811 is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On September 5, 2014, at approximately 6:00 p.m., inside of 680 Quincy Street, 4th Floor, Brooklyn, New York, several police officers, including Detective Dean Campbell, Shield No. 1220, unlawfully entered the apartment without a search warrant, illegally seized, falsely imprisoned, falsely arrested Plaintiff without cause or justification, by, among things.

13. Thereafter, Plaintiff was maliciously prosecuted, and denied the right to a fair trial. Those officers that did not touch Plaintiff failed to intervene and protect him from being illegally seized, maliciously prosecuted, and denied the right to a fair trial.

14. Plaintiff was handcuffed and arrested without probable cause or legal justification by these police officers.

15. At no point in time did the police officers recover drugs, guns, or contraband from Plaintiff's person, nor did they find any drugs, guns, or contraband, in Plaintiff's possession, custody, or control.

16. After plaintiff was unlawfully arrested, he was placed into a police van and taken to the 81st precinct.

17. At no point in time did the police recover any drugs, guns or contraband from Plaintiff at the precinct.

18. Thereafter, after several hours in police custody, Plaintiff was transported to Brooklyn Central Booking.

19. While at the precinct, the defendant police officers provided the Kings County District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

20. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that plaintiff was in possession of drugs.

21. Based upon the false, misleading and/or incomplete information provided to the Kings District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

22. On September 6, 2014, after approximately 24 hours in police custody, Plaintiff was arraigned in Kings County Criminal Court and the Judge set bail in the amount of \$7,500, which Plaintiff was unable to post.

23. As a result of being unable to post bail, Plaintiff was remanded to Riker's Island.

24. On September 9, 2014, after approximately 4 days at Riker's Island, plaintiff was able to post bail and was released from custody.

25. Thereafter, plaintiff was forced to appear in Court on approximately 3 occasions before all charges against plaintiff were dismissed and sealed on March 27, 2015.

26. Those officers that did not touch plaintiff failed to intervene and protect him from being illegally seized, maliciously prosecuted, and denied the right to a fair trial.

27. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure, false arrest, malicious prosecution, and denial of fair trial.

28. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.

32. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

33. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

35. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

36. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

39. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

40. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

46. Defendants lacked probable cause to search plaintiff.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

51. Plaintiff repeats and realleges paragraphs 1 through 50 as if fully set forth herein.

52. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution.

53. Defendants commenced and continued a criminal proceeding against plaintiff.

54. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

55. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

56. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 58 with the same force and effect as if fully set forth herein.

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. In withholding/creating false evidence against plaintiff Darnell Boomer, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

64. As a result of the foregoing, plaintiff Darnell Boomer, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Failure to Intervene

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

73. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff, Darnell Boomer demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 1, 2017

By: /s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: DETECTIVE DEAN CAMPBELL, Shield No. 1220,
SERGEANT JOSEPH CRUZADO, Tax No. 934811

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 1, 2017

/s/
STUART E. JACOBS